



General Assembly

February Session, 2026

Raised Bill No. 5441

LCO No. 2622



Referred to Committee on JUDICIARY

Introduced by:
(JUD)

***AN ACT CONCERNING REVOCATION OF NON-PROBATE
TRANSFERS AND APPOINTMENTS BY DISSOLUTION OF
MARRIAGE.***

Be it enacted by the Senate and House of Representatives in General Assembly convened:

- 1 Section 1. (NEW) (*Effective January 1, 2027*) (a) Except as otherwise
2 provided by law, sections 1 and 2 of this act shall apply to: (1) The
3 property of a decedent that passes outside of probate and who dies
4 while domiciled in this state, (2) property coming into the control of a
5 fiduciary who is subject to the laws of this state, (3) survivorship and
6 related accounts in this state, and (4) trusts subject to administration in
7 this state.
- 8 (b) Sections 1 and 2 of this act shall not apply to: (1) Wills; (2) the
9 appointment of a health care representative; (3) the appointment of an
10 agent under a power of attorney; (4) real estate owned by spouses as
11 joint tenants; (5) conservatorships of the person or the estate; or (6)
12 guardianships.
- 13 Sec. 2. (NEW) (*Effective January 1, 2027*) (a) As used in this section:

14 (1) "Disposition or appointment of property" includes a transfer of an
15 item of property or any other benefit to a beneficiary designated in a
16 governing instrument;

17 (2) "Dissolution of marriage" means any final decree or judgment of
18 divorce or annulment, or any dissolution or declaration of invalidity of
19 a marriage, recognized as valid under the laws of this state. "Dissolution
20 of marriage" does not include a decree of legal separation that does not
21 terminate an individual's status as a spouse;

22 (3) "Divorced individual" means an individual whose marriage has
23 been dissolved as described in subdivision (2) of this subsection;

24 (4) "Former spouse" means a person whose marriage to the divorced
25 individual resulted in a dissolution of marriage;

26 (5) "Former spouse's relative" or "relative of the former spouse"
27 means an individual who is related to the former spouse by application
28 of the rules establishing parent-child relationships under chapter 818 of
29 the general statutes, or affinity, and who, after the dissolution of
30 marriage, is not related to the divorced individual by application of the
31 rules establishing parent-child relationships under chapter 818 of the
32 general statutes, or affinity;

33 (6) "Governing instrument" means an instrument executed by the
34 divorced individual prior to the date of dissolution of the individual's
35 marriage from the former spouse, whether made prior to or after
36 January 1, 2027, including, but not limited to, a testamentary instrument;
37 trust agreement; insurance or annuity policy; savings, retirement,
38 transfer on death, pension, deferred compensation, death benefit, stock
39 bonus or profit-sharing plan, account, arrangement, system or trust;
40 agreement with a bank, brokerage firm or investment company;
41 registration of securities in beneficiary form; other similar benefit plan;
42 or a dispositive, appointive or nominative instrument of any similar
43 type;

44 (7) "Payor" means a trustee, insurer, business entity, employer,
45 government, governmental agency or subdivision, or any other person
46 authorized or obligated by law or a governing instrument to make
47 payments;

48 (8) "Person" means an individual, corporation, statutory or business
49 trust, estate, trust, partnership, limited liability company, association,
50 joint venture, court, government, governmental subdivision, agency or
51 instrumentality, public corporation or any other legal or commercial
52 entity; and

53 (9) "Revocable", with respect to a disposition, appointment, provision
54 or nomination, means one under which the divorced individual, at the
55 time of the dissolution of marriage, was alone empowered, by law or
56 under the governing instrument, to cancel the designation in favor of
57 the former spouse or former spouse's relative, whether or not the
58 divorced individual was then empowered to designate himself or
59 herself in place of the former spouse or former spouse's relative and
60 whether or not the divorced individual then had the capacity to exercise
61 the power.

62 (b) Except as provided by the express terms of a governing
63 instrument, a court order or a contract relating to the division of
64 property made between the divorced individual and the former spouse
65 prior to or after the date of dissolution of marriage, a dissolution of
66 marriage effective on or after January 1, 2027:

67 (1) Revokes any revocable:

68 (A) Disposition or appointment of property in a governing
69 instrument made by a divorced individual to or for the benefit of the
70 former spouse or a relative of the former spouse;

71 (B) Provision in a governing instrument conferring a general or
72 nongeneral power of appointment on a former spouse or on a former
73 spouse's relative;

74 (C) Nomination in a governing instrument, nominating a former
75 spouse or a former spouse's relative to serve in any fiduciary or
76 representative capacity; and

77 (D) Provision in a governing instrument conferring on a former
78 spouse or on a former spouse's relative the power to appoint a person
79 to serve, or the power to remove a person serving, in a fiduciary or
80 representative capacity.

81 (2) Severs the interests of the divorced individual and the former
82 spouse in property, other than real estate, held by the divorced
83 individual and the former spouse at the time of the dissolution of
84 marriage as joint tenants with the right of survivorship, transforming
85 the interests of the divorced individual and former spouse into equal
86 tenancies in common.

87 (c) (1) Any provisions of a governing instrument shall be given effect
88 as if the former spouse and former spouse's relatives died immediately
89 before the date of dissolution of marriage.

90 (2) A severance under subdivision (2) of subsection (b) of this section
91 does not affect any third-party interest in property acquired for value in
92 good faith reliance on an apparent title by survivorship in the survivor
93 of the former spouses unless a writing declaring the severance has been
94 noted, registered, filed or recorded in records appropriate to the kind
95 and location of the property which are relied upon, in the ordinary
96 course of transactions involving such property, as evidence of
97 ownership.

98 (d) Provisions of a governing instrument revoked solely by this
99 section are revived by the divorced individual's remarriage to the
100 former spouse or by a nullification of the dissolution of marriage.

101 (e) No change of circumstances other than the circumstances
102 described in this section and section 45a-447 of the general statutes effect
103 a revocation.

104 (f) A payor or other third party is not liable for having made a
105 payment or transferred an item of property or any other benefit to a
106 beneficiary designated in a governing instrument affected by a
107 dissolution of marriage or remarriage, or for having taken any other
108 action in good faith reliance on the validity of the governing instrument,
109 before the payor or other third party received written notice of the
110 dissolution of marriage or remarriage. A payor or other third party is
111 liable for a payment made or other action taken after the payor or other
112 third party received written notice of a claimed forfeiture or revocation
113 under this section. Written notice of the dissolution of marriage or
114 remarriage under this section shall be delivered to the payor's or other
115 third party's home office or principal address, by registered or certified
116 mail, return receipt requested.

117 (g) (1) A revocation under subsection (b) of this section does not affect
118 any third-party interest in real property acquired for value in good faith
119 reliance on the apparent authority of a former spouse or a relative of the
120 former spouse acting in any fiduciary or representative capacity,
121 including as a trustee, unless a notice of the dissolution of marriage or a
122 notice declaring the revocation has been recorded in the land records
123 which are relied upon, in the ordinary course of transactions involving
124 such real property, as evidence of ownership.

125 (2) A person who purchases property, other than real property, from
126 a former spouse, a former spouse's relative or any other person for value
127 and without notice, or who received from the former spouse, former
128 spouse's relative or any other person a payment, other item of property
129 or benefit in partial or full satisfaction of a legally enforceable obligation,
130 is not (A) obligated under this section to return the payment, item of
131 property or benefit, or (B) liable under this section for the amount of the
132 payment or the value of the item of property or benefit.

133 (3) Except as may be preempted by federal law, a former spouse,
134 relative of a former spouse or other person who, not for value, received
135 a payment, item of property, real, personal or otherwise, or any other

136 benefit to which the person is not entitled under this section, (A) shall
137 return the payment, item of property or benefit, or (B) is personally
138 liable for the amount of the payment or the value of the item of property
139 or benefit, to the person who is entitled to such payment, property or
140 benefit under this section.

141 Sec. 3. Section 45a-257c of the general statutes is repealed and the
142 following is substituted in lieu thereof (*Effective January 1, 2027*):

143 (a) If, after executing a will, the testator's marriage is terminated by
144 dissolution, divorce or annulment, the dissolution, divorce or
145 annulment shall revoke: [any] (1) Any disposition or appointment of
146 property made by the will to the former spouse, or a relative of the
147 testator's former spouse, (2) any provision conferring a general or
148 special power of appointment on the former spouse, or a relative of the
149 testator's former spouse, and (3) any nomination of the former spouse,
150 or a relative of the testator's former spouse as executor, trustee,
151 conservator, guardian or other fiduciary, unless the will, a court order,
152 including a decree of dissolution of marriage, or a contract relating to
153 the division of property made between the testator and the testator's
154 former spouse prior to or after the date of dissolution of marriage,
155 expressly provides otherwise.

156 (b) Property prevented from passing to a former spouse or a relative
157 of the testator's former spouse due to revocation by dissolution, divorce
158 or annulment shall pass as if the former spouse failed to survive the
159 testator, and other provisions conferring power or office on the former
160 spouse or a relative of the testator's former spouse shall be interpreted
161 as if the spouse failed to survive the testator.

162 (c) If provisions of the will of the testator are revoked solely by this
163 section, such provisions shall be revived by the testator's remarriage to
164 the former spouse.

165 (d) A decree of separation which does not terminate the status of
166 husband and wife is not a dissolution or divorce for the purposes of this

167 section.

168 (e) As used in this section, "relative of the testator's former spouse"
169 means an individual who is related to the testator's former spouse by
170 application of the rules establishing parent-child relationships under
171 chapter 818, or affinity, and who, after the dissolution, divorce or
172 annulment, is not related to the testator by application of the rules
173 establishing parent-child relationships under chapter 818 or affinity.

174 Sec. 4. Section 19a-579b of the general statutes is repealed and the
175 following is substituted in lieu thereof (*Effective January 1, 2027*):

176 The appointment of the principal's spouse, or a relative of the
177 principal's spouse, as health care representative shall be revoked upon
178 the divorce or legal separation of the principal and spouse or upon the
179 annulment or dissolution of their marriage, unless the principal
180 specifies otherwise. As used in this section, "relative of the principal's
181 spouse" means an individual who is related to the principal's spouse by
182 application of the rules establishing parent-child relationships under
183 chapter 818, or affinity, and who, after the annulment or dissolution of
184 marriage, is not related to the principal by application of the rules
185 establishing parent-child relationships under chapter 818 or affinity.

186 Sec. 5. Subsection (b) of section 1-350i of the general statutes is
187 repealed and the following is substituted in lieu thereof (*Effective January*
188 *1, 2027*):

189 (b) An agent's authority terminates when:

190 (1) The principal revokes the authority;

191 (2) A court terminates the agent's authority pursuant to subsection
192 (b) of section 1-350g;

193 (3) The agent dies or resigns;

194 (4) The agent becomes incapacitated. Unless the power of attorney

195 otherwise provides, an agent shall be determined to be incapable of
196 acting as an agent upon a determination in a writing or other record that
197 the agent is incapacitated:

198 (A) Within the meaning set forth in subparagraph (A) of subdivision
199 (5) of section 1-350a, by:

200 (i) A judge in a court proceeding;

201 (ii) Two independent physicians, two independent advanced practice
202 registered nurses or one independent physician and one independent
203 advanced practice registered nurse; or

204 (iii) A successor agent, designated in accordance with section 1-350j,
205 if a written opinion of a physician or an advanced practice registered
206 nurse cannot be obtained either due to the refusal of an agent to be
207 examined by a physician or an advanced practice registered nurse or
208 due to an agent's failure to execute an authorization to release medical
209 information; or

210 (B) Within the meaning set forth in subparagraph (B) of subdivision
211 (5) of section 1-350a, by a judge;

212 (5) An action is filed for the dissolution or annulment of the [agent's]
213 marriage of the agent or agent's relative to the principal or their legal
214 separation, unless the power of attorney otherwise provides. As used in
215 this subdivision, "agent's relative" means an individual who is related
216 to the agent by application of the rules establishing parent-child
217 relationships under chapter 818, or affinity, and who, after the
218 dissolution or annulment of the principal's marriage, is not related to
219 the principal by application of the rules establishing parent-child
220 relationships under chapter 818 or affinity; or

221 (6) The power of attorney terminates.

222 Sec. 6. Subsection (e) of section 1-352 of the general statutes is
223 repealed and the following is substituted in lieu thereof (*Effective January*

224 1, 2027):

225 (e) The following optional informational form may be used as part of
226 the Statutory Form or as part of a separate document from the Statutory
227 Form.

228 IMPORTANT INFORMATION FOR AGENT

229 Agent's Duties

230 When you accept the authority granted under this power of attorney,
231 a special legal relationship is created between you and the principal.
232 This relationship continues until you resign or the power of attorney is
233 terminated or revoked. You must:

234 (1) Do what you know the principal reasonably expects you to do
235 with the principal's property or, if you do not know the principal's
236 expectations, act in the principal's best interest;

237 (2) Act in good faith;

238 (3) Do nothing beyond the authority granted in this power of
239 attorney; and

240 (4) Disclose your identity as an agent whenever you act for the
241 principal by writing or printing the name of the principal and signing
242 your own name as "agent" in the following manner:

243 (Principal's Name) by (Your Signature) as Agent

244 Unless the special instructions in this power of attorney state
245 otherwise, you must also:

246 (1) Act loyally for the principal's benefit;

247 (2) Avoid conflicts that would impair your ability to act in the
248 principal's best interest;

249 (3) Act with care, competence, and diligence;

250 (4) Keep a record of all receipts, disbursements, and transactions
251 made on behalf of the principal;

252 (5) Cooperate with any person that has authority to make health care
253 decisions for the principal to do what you know the principal
254 reasonably expects or, if you do not know the principal's expectations,
255 to act in the principal's best interest; and

256 (6) Attempt to preserve the principal's estate plan if you know the
257 plan and preserving the plan is consistent with the principal's best
258 interest.

259 Termination of Agent's Authority

260 You must stop acting on behalf of the principal if you learn of any
261 event that terminates this power of attorney or your authority under this
262 power of attorney. Events that terminate a power of attorney or your
263 authority to act under a power of attorney include:

264 (1) Death of the principal;

265 (2) The principal's revocation of the power of attorney or your
266 authority;

267 (3) The occurrence of a termination event stated in the power of
268 attorney;

269 (4) The purpose of the power of attorney is fully accomplished; or

270 (5) If you [are] or your relative is married to the principal, a legal
271 action is filed with a court to end [your] the marriage to the principal
272 through divorce or annulment, or for your legal separation, unless the
273 special instructions in this power of attorney state that such an action
274 will not terminate your authority.

275 Liability of Agent

276 The meaning of the authority granted to you is defined in the
277 Connecticut Uniform Power of Attorney Act, sections 1-350 to 1-353b,
278 inclusive. If you violate the Connecticut Uniform Power of Attorney
279 Act, sections 1-350 to 1-353b, inclusive, or act outside the authority
280 granted, you may be liable for any damages caused by your violation.

281 If there is anything about this document or your duties that you do
282 not understand, you should seek legal advice.

This act shall take effect as follows and shall amend the following sections:		
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Section 1	<i>January 1, 2027</i>	New section
Sec. 2	<i>January 1, 2027</i>	New section
Sec. 3	<i>January 1, 2027</i>	45a-257c
Sec. 4	<i>January 1, 2027</i>	19a-579b
Sec. 5	<i>January 1, 2027</i>	1-350i(b)
Sec. 6	<i>January 1, 2027</i>	1-352(e)

Statement of Purpose:

To assist divorced individuals who have not updated beneficiary designations, revocable trusts and joint accounts after a dissolution of marriage.

[Proposed deletions are enclosed in brackets. Proposed additions are indicated by underline, except that when the entire text of a bill or resolution or a section of a bill or resolution is new, it is not underlined.]